

Yogendra Prasad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 11 November 2019 · WRIT-C No. 36093 of 2019 · WRIT - C No. 36093 of 2019 · **Writ disposed; EE to decide representation; recovery stayed four weeks.**

HEADNOTE

On a writ against a recovery notice and disconnection framed as a billing-accuracy dispute, after an objection that Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 was the statutory alternative, the Court did not decide the bills or restoration. It directed the Executive Engineer, PuVVNL Ghazipur, to decide a representation by a reasoned speaking order within four weeks if filed within a week, and kept recovery under the 11 October 2019 notice in abeyance for four weeks or until that decision, whichever was earlier.

FACTUAL SUMMARY

Yogendra Prasad sought certiorari against a 11 October 2019 recovery notice for Rs. 8,04429 plus 7.5% surcharge and regulatory charges on account no. 751723868445, restoration of supply at Mauza Gadahi, District Ghazipur, a bar on coercive action, and installment payment. The licensee objected that the dispute was a billing-accuracy complaint with a statutory alternative under Clause 6.5(b) of the U.P. Electricity Supply Code, 2005. The petitioner said a recovery certificate had already issued, leaving him remediless if relegated, and asked liberty to represent to the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

billing-dispute-alternative-remedy

HOLDING

On a writ against a recovery notice and disconnection in a billing-accuracy dispute, after a Clause 6.5(b) alternative-remedy objection, the Court did not decide the bills or restoration. It directed the Executive Engineer to decide a representation by a reasoned speaking order within four weeks if filed within a week, stayed recovery under the 11 October 2019 notice for four weeks or until that decision, whichever was earlier, and provided that default in filing would dismiss the writ without further reference. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 On a writ against a recovery notice and disconnection framed as a billing-accuracy dispute, after an objection that Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 was the statutory alternative, the Court did not decide the bills or restoration.. ¶ 1

installment-payment-clause-6.14 On a writ against a recovery notice and disconnection framed as a billing-accuracy dispute, after an objection that Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 was the statutory alternative, the Court did not decide the bills or restoration.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ACCURACY OF THE IMPUGNED BILLS AND THE RS. 8,04429 RECOVERY DEMAND

¶ 1

NOT DECIDED — WHETHER CLAUSE 6.5(B) OF THE SUPPLY CODE BARS THE WRIT

preliminary objection noted; writ disposed on a representation to the Executive Engineer without ruling on maintainability ¶ 1

NOT DECIDED — RESTORATION OF SUPPLY, INSTALLMENT FACILITY, AND MERITS OF THE 11 OCTOBER 2019 RECOVERY NOTICE

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.